POMELO TRADING (PVT) LTD
and
POMELO MINING (PVT) LTD
versus
ROBERT DOW

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE …and 20 January 2025

Opposed Application

R. Nyapadi for the Applicants;
P. Nkomo for the Respondent

MAMBARA J:

[1] At the commencement of the hearing, both counsels agreed to consolidate case numbers HCH 5990/25 and HCH 6057/25, as they raise identical issues. The applicants seek condonation for the late filing of an application for leave to appeal against this Court's interlocutory judgment (dismissing the applicants' special plea of prescription and exception, and referring the matter to trial). If condonation is refused, the late application for leave to appeal falls away. The respondent opposes the application, contending that the delay is inexcusable, the applicants' conduct is an abuse of process, and no appealable merit exists to warrant leave. The background is that the trial in the main matter has already commenced – the plaintiff (respondent herein) has testified – and only these dilatory interlocutory manoeuvres have stalled its completion. This Court must decide whether to indulgently extend the time for seeking leave to appeal, or dismiss the application so that the trial may proceed to finality without further delay.

[2] An application for condonation is an *appeal for indulgence*, and the onus rests on the applicants to satisfy the Court that there is "sufficient cause" to excuse their non-compliance with the rules. The Court's discretion is exercised judicially upon a consideration of all relevant factors, essentially as "a matter of fairness to both sides". Established authorities – in this jurisdiction and the Commonwealth – enumerate the well-known factors: (a) the length of the delay, (b) the explanation for the delay, (c) the prospects of success on appeal, and (d) the overall interests of justice, including the importance of the case, the respondent's interest

in finality, the convenience of the court, and the avoidance of unnecessary delay. These factors are not individually decisive, but interrelated and to be weighed together: for example, "a slight delay and a good explanation may help to compensate for prospects of success which are not strong, and conversely, a long delay with a weak explanation would require very strong merits". Ultimately, if no prospects of success exist, "there would be no point in granting condonation". This approach traces back to classic statements of principle in cases like *United Plant Hire (Pty) Ltd* v *Hills & Ors* 1976 (1) SA 717 (A) at 720E-G and our own *Bessie Maheya* v *Independent African Church* SC 58/07, among others.

[3] The judgment sought to be appealed was delivered some time ago. It dismissed the preliminary points of prescription and privity of contract and referred the matter to trial. Instead of promptly applying for leave to appeal within the prescribed time, the applicants – on the advice of their legal practitioner – directly noted an appeal to the Supreme Court without leave, asserting that the judgment was final and appealable *as of right*. They relied on a purported interpretation of *Blue Rangers Estates (Pvt) Ltd* v *Muduvuri and Anor* 2009 (1) ZLR 368 (S) (the "Blue Rangers case") which, in counsel's view, obviated the need for leave. On 18 November 2025, the Supreme Court emphatically struck that appeal off the roll for want of leave. The applicants then, on 24 November 2025, filed the present application for leave in this Court, accompanied by this condonation request.

[4] Calculated from the date of the interlocutory judgment, the delay in seeking leave spans several months. The applicants contend, however, that once the Supreme Court ruled on 18 November 2025 that leave was necessary, they acted *timeously* by filing this application within six days (by 24 November 2025). This argument deliberately ignores that the clock started ticking when the judgment *a quo* was delivered – not when the Supreme Court "sent them back" for leave. In truth, the entire period during which applicants pursued an ill-fated direct appeal (and beyond the 15-day limit for seeking leave) must be explained. A litigant cannot unilaterally suspend the rules by choosing an incorrect forum.

[5] The explanation tendered is that the applicants' legal practitioner, *Mr. Nyapadi*, honestly but mistakenly believed the judgment was final (since it dismissed a special plea of prescription) and appealable without leave, based on his misreading of *Blue Rangers*. In effect, counsel admits he misconstrued the law – a *"pure mistake of law,"* to use his words. The respondent forcefully retorts that this was a deliberate ploy to delay, noting that the applicants have tried the same tactic before: earlier in this very dispute, when a joinder application was decided against them, they noted an appeal without leave, only to have it struck off in March 2025. Undeterred, they repeated the stratagem with the special plea, again consuming time in the Supreme Court only to be non-suited for want of leave. The modus operandi, says the respondent, is patent – a calculated pattern of abusing procedural technicalities to "put off the evil day" of accountability.

[6] Even taking the applicants' explanation at face value, as a *bona fide* but mistaken legal opinion, it squarely attributes the delay to the legal practitioner's error. The question then arises: should the clients be absolved of the consequences of their chosen lawyer's negligence? The general rule is well settled that, save in very exceptional circumstances, a litigant bears the risk of the lawyer's omissions or mistakes. Over half a century ago in *Saloojee & Anor NNO* v *Minister of Community Development* 1965 (2) SA 135 (A) at 141B-E, STEYN CJ cautioned that *"there is a limit beyond which a litigant cannot escape the results of his attorney's lack of diligence or the insufficiency of the explanation tendered"*. To hold otherwise – to allow attorneys' ineptitude to become a perennial excuse – *"might have a disastrous effect upon the observance of the Rules… Considerations ad misericordiam should*

not be allowed to become an invitation to laxity". Our courts have echoed this principle time and again. In *S v McNab* 1986 (2) ZLR 280 (S), DUMBUTSHENA CJ crisply stated: *"In my view, clients should, in such cases, suffer for the negligence of their legal practitioners."* The learned Chief Justice went on to *"share the view expressed by STEYN CJ in Saloojee… that… the attorney, after all, is the representative whom the litigant has chosen, and there is little reason why the litigant should be absolved from the normal consequences of such a relationship"*. Similarly, in *Selk Enterprises (Pvt) Ltd* v *Chimenya & Ors* SC 10/03, the Supreme Court held that an explanation merely to the effect that non-compliance was due to an oversight by legal practitioners is manifestly inadequate – counsel's inadvertence is not a "reasonable explanation" for purposes of condonation.

[7] In the present case, *Mr. Nyapadi* candidly conceded (both in his affidavit and under questioning by the Court) that he misdirected the applicants by reading the law incorrectly and pursuing the wrong procedure. This is a paradigmatic instance of legal practitioner error. No suggestion has been made that the applicants themselves were blamelessly ignorant or could not reach their lawyer – indeed, they persisted with the same team despite the earlier mishap. When asked why his clients should not suffer the consequences, *Mr. Nyapadi* implored the Court to forgive the lapse, arguing that since the Supreme Court invited them to seek leave, "that should be it". With respect, that submission reflects a fundamental misunderstanding. The Supreme Court's procedural ruling did not bestow an automatic indulgence; it merely directed the applicants to follow the proper process, where all the usual condonation considerations would still apply. To paraphrase this Court's oral remarks: the strike-off for want of leave does *not* press a reset button erasing the delay or excusing its cause.

[8] Our law is clear that litigants cannot hide behind their lawyer's skirt on such matters. The "sins of the lawyer" will be visited on the client except in truly exceptional cases. This stance is not born of harshness but of necessity – otherwise the efficient enforcement of rules would be subverted and a culture of laxity encouraged. In *Ndebele v Ncube* 1992 (1) ZLR 288 (S) at 290C-E, McNALLY JA lamented the surge in meritless condonation applications, observing that courts were being "bombarded with excuses for failure to act". He warned that *"we are beginning to hear more appeals for charity than for justice. Incompetence is becoming a growth industry. Petty disputes are argued and re-argued until costs far exceed the amounts in dispute"*. The learned judge then sounded a clarion call: *"The time has come to remind the legal profession of the old adage vigilantibus non dormientibus subveniunt – roughly translated, the law will help the vigilant but not the sluggard."* This Court wholly associates itself with those remarks. There comes a point where indulgence must yield to discipline.

[9] Accordingly, I find that the explanation for the delay is singularly unpersuasive. At best for the applicants, it discloses a negligent misapprehension of clear procedural law by their counsel. It is trite that an interlocutory order referring a matter to trial is *not final* and requires leave (as indeed the Supreme Court patiently explained in this very case). The applicants ought to have known this, especially after their earlier failed attempt; their persistence in the error suggests either an *obdurate refusal* to accept the law or a stratagem to buy time. Neither constitutes "good cause" for condonation.

[10] Given the unsatisfactory explanation, the law dictates that the bar for showing prospects of success is correspondingly raised. As our courts have put it, *"where the explanation for the delay is unsatisfactory then the prospects of success on the appeal must be really great before the court can exercise its discretion to condone the non-compliance;*

and conversely, the more satisfactory the explanation, the more easily the court will condone even if prospects are moderate". This principle – demonstrated in cases like *Kuszaba-Dabrowski v Steel NO* 1966 RLR 60 (AD) and recently applied in *Ngirazi* v *Saurosi & Anor* HB 84/18 – means that because the applicants' excuse is weak, they must make an overwhelming case on the merits to save their application. I turn now to examine whether they have such a case.

[11] The applicants seek leave to appeal my interlocutory ruling dismissing their special plea of prescription and an exception for want of privity of contract. The intended appeal would challenge the finding that the claim against second applicant (Pomelo Mining) was not prescribed and could proceed to trial, and my related rulings on the choice of law and corporate identity issues. Having presided over those preliminary arguments, I am acutely aware of their context. This was a pre-trial skirmish in a case involving an alleged debt from 2016. The plaintiff (respondent) initially sued Pomelo Mining; later, by amendment, Pomelo Trading was joined as a co-defendant in 2023. The applicants raised a special plea that the claim against Pomelo Trading was prescribed (being introduced years after the debt arose), and Pomelo Mining raised an exception that it had no privity of contract with the plaintiff. After hearing full argument, I dismissed both points – the prescription plea on the basis that, properly analysed (and considering certain equities and foreign law analogies), the claim was not time-barred, and the privity objection on the basis that Pomelo Mining's relationship to the contract could not be determined on exception in light of allegations that it was an alter ego or accessory of the principal debtor. I then directed that the matter proceeds to trial on the merits, as no outright bar to the claim had been established.

[12] The applicants argue that this ruling was in error. *Mr. Nyapadi* submits that Pomelo Trading's late joinder indeed introduced a new party long after the debt arose in 2016, so any claim against it *ought* to be time-barred. He further contends that the Court's reliance on principles drawn from English law (such as the English Limitation Act of 1980) was misplaced, given that the issue of applicable law had not been raised by the respondent. Additionally, he maintains that privity of contract is absolute – *"You can only sue a party you have a contract with,"* as he put it – and since Pomelo Trading was not originally party to the loan agreement, the claim against it should fail. These arguments were fervently advanced. However, in my view they are far from "winning" points on appeal, for several reasons:

(a) The order in question is interlocutory. Leave to appeal should be granted only if there are reasonable prospects that another court will come to a different conclusion on those preliminary issues. This is a higher threshold than for final orders; it recognizes that piecemeal appeals are discouraged unless a clear injustice might otherwise result. Here, the operative part of the judgment simply cleared away dilatory defences so that the real dispute could be tried. It emphatically did *not* determine the ultimate rights of the parties – it expressly *"refers the matter to trial"*. The Supreme Court's insistence on leave confirms that this is a typical case where the interests of justice favour the continuation of proceedings in this Court rather than fragmentation through appeal.

(b) The respondent points out (correctly) that the applicants' special plea and exception themselves suffered from procedural lapses. The special plea was filed outside the time limits prescribed by the rules (after the close of pleadings, without the Court's leave), and the exception was raised without the required prior notice and well out of time. I was indulgent in entertaining those points at all. Even on appeal, the applicants would face the hurdle that their objections were not properly before the Court to begin with – indeed, part of my ruling was that the exception was not procedurally taken, even though I went on to

consider its merits in the alternative. An appellate court is unlikely to overlook these fatal irregularities. Thus, even if there were arguable merit in the prescription or privity points, the applicants would have to persuade the Supreme Court to condone their own non-compliance with procedural rules regarding the filing of special pleas and exceptions (a somewhat ironic echo of the very condonation issue at hand). The prospect of that is dim.

(c) Having reflected on my judgment, I remain satisfied that it is correct. The prescription issue turned on an interplay of facts and law – including when exactly the cause of action arose and whether Pomelo Trading could be said to be part of the same corporate family such that its joinder related back to the original action. There was also the consideration that Zimbabwean law permits certain equitable tolling or acknowledgment concepts (hence the reference to comparative English law on limitation). These are nuanced issues. The applicants' argument reduces them to a simplistic counting of days, ignoring factual disputes (e.g. what knowledge the plaintiff had and when, the relationship between the two Pomelo entities, etc.) that can only be properly resolved by evidence at trial. Likewise, the privity argument is premature. If Pomelo Mining truly had no role in the debt, that will become evident at trial – but the pleadings alleged it was an alter ego of the first applicant, which, if proven, could pierce the corporate veil. Dismissing the exception simply preserved the issue for trial; it did not impose liability on Pomelo Mining, but allowed the plaintiff the opportunity to prove its case. No irreversible prejudice arises from that decision.

(d) Perhaps most critically, the trial is already underway. The plaintiff has given evidence and is awaiting the chance to complete his case once these delaying tactics are dealt with. The core dispute – whether the applicants owe the debt – has been pending for close to a decade. The interests of justice cry out for finality. The Supreme Court has not been given any reason to believe that continuing the trial will cause injustice; on the contrary, allowing an appeal now would reward the applicants' dilatoriness and severely prejudice the plaintiff by further postponing resolution of his claim (which, if valid, has already been long delayed). As GWAUNZA JA observed in *Tel-One (Pvt) Ltd* v *Communication & Allied Services Workers Union* SC 1/06, *"essentially, in an application of this nature, the applicant must satisfy the court firstly, that he has a reasonable explanation for the delay, and secondly, that his prospects of success on appeal are good."* Both requirements must be met. Here, as discussed, the explanation flounders – and the prospects of success on appeal range from poor to non-existent. The applicants have not demonstrated "an arguable case" on appeal that has any realistic chance of success. What the test of reasonable prospects demands is a *"sound, rational basis for the conclusion that there are prospects of success on appeal"*, something more than a mere possibility or an arguable point. Instead of sound grounds, the applicants here seek to re-argue points that were properly dismissed and which can still be fully adjudicated at trial if necessary.

[13] I am mindful that, at the condonation stage, the Court's role is not to determine the appeal itself but to assess the likelihood of its success. However, given that I presided over the matter and have detailed knowledge of its nuances, I must say that no reasonable court would disturb my interlocutory ruling on the material presented. There is certainly *"no sound or rational basis"* to suppose that the appeal enjoys good prospects. On the contrary, it appears to be a classic attempt to delay the inevitable – the "inevitable" here being that the matter proceeds to trial, where the truth can be determined and justice can be done on the merits.

[14] This case epitomizes the mischief that unmeritorious condonation applications can cause. The history of the litigation shows the applicants' stark reluctance to ever reach the

stage of a trial on the merits. At every turn, they have seized upon technical points to avoid joining issue. When joinder was ordered, they appealed (without leave) and were rebuffed. When their prescription plea failed, they appealed (without leave) and were rebuffed. Now they seek leave belatedly, still proclaiming the strength of their dilatory defences instead of answering the plaintiff's claim. The Court cannot escape the conclusion that the applicants are stalling for time – hoping to keep the plaintiff at bay indefinitely while they remain in possession of the disputed resources (or otherwise avoid the "day of reckoning" for the debt). Ms. Nkomo, for the respondent, characterized the pattern aptly as an "abuse" and urged the Court to finally put a stop to it. In her words, the applicants have been *"in this court and the Supreme Court for close to a decade"* with this matter, employing every possible ruse to *"avoid payment by putting the evil day at bay"*. I agree. Enough is enough. Courts must be wary of litigants who *"will stop at nothing in avoiding to pay legitimate claims"*. As BARTLETT J memorably warned in *Industrial Equity Ltd v Walker* 1996 (1) ZLR 269 (H): *"Things that go round come round. Walker has had a merry dance. But he would, to my mind, be well advised to realise that the music has stopped and the time has come to pay the piper."* The applicants before me have danced long enough; the music has indeed stopped. The time for accountability – the time to face the trial – has arrived. It is high time the dance is over and the piper is paid.

[15] Weighing all the factors together, the balance tilts decisively against granting condonation. The delay was significant and wholly attributable to the negligence (or stratagem) of the applicants' legal practitioner – a factor for which the applicants must bear responsibility. The explanation offered borders on *mala fides* in light of the repeated procedural abuse. And crucially, there are no reasonable prospects of success on the merits of the intended appeal. In fact, permitting an appeal now would gravely prejudice the finalization of the case, undermining the respondent's right to prompt justice and the Court's interest in bringing litigation to an end. The interests of finality and justice demand that this matter proceed to trial without further roadblocks. As was observed in *Ndebele v Ncube* (supra), while the law should not do injustice to litigants, there comes a point when the proliferation of rescissions, condonations and out-of-time appeals must cease. This case has reached that point.

[16] In the result, the application for condonation is dismissed. It follows that the associated application for leave to appeal (filed out of time) is not properly before the Court and is also dismissed. The trial must now proceed urgently to finality under the original case.

[17] The respondent asked for costs on the higher scale, arguing that the applicants' conduct has been vexatious and an abuse. Indeed, this is a textbook case for punitive costs – the applicants have wasted both this Court's and the Supreme Court's time with meritless manoeuvres. I am persuaded that a stern costs order is warranted to express the Court's disapproval of the abuse and to deter like-minded litigants. The applicants shall therefore bear the respondent's costs on the legal practitioner and client scale.

[18] It is ordered as follows –

1.The application for condonation for late filing of the application for leave to appeal in case nos. HCH 5990/25 be and is hereby dismissed.

2. The application for leave to appeal (having been filed out of time and no condonation granted) be and is hereby struck off the roll.

3. The applicants, jointly and severally, shall pay the respondent's costs on the legal practitioner-client scale.

MAMBARA J……..

Muza & Nyapadi, applicants' legal practitioners
Manokore Attorneys, respondent's legal practitioners